



CHAPTER 2.

An Act to postpone the commencement of the House to House Collections Act, 1939, the Marriage (Scotland) Act, 1939, and certain provisions of the Adoption of Children (Regulation) Act, 1939, to amend sections eight and fifteen of the last mentioned Act, and to amend the provisions of section one hundred and forty of the Law of Property Act, 1922, with respect to the period within which applications may be made under that section. [14th December 1939.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) The coming into operation of the Acts mentioned in the Schedule to this Act, except such provisions thereof as are specified in the third column of that Schedule, shall be postponed until such date as His Majesty may by Order in Council appoint.

Postpone-
ment of
operation of
certain
Acts.

(2) Different dates may be appointed by an Order in Council under this section in relation to the said Acts respectively or to different provisions thereof.

CH. 2. *Postponement of Enactments 3 & 4 GEO. 6.
(Miscellaneous Provisions) Act, 1939.*

Amendment
of 2 & 3
Geo. 6.
c. 27, ss. 8
& 15.

2.—(1) Section eight of the Adoption of Children (Regulation) Act, 1939, shall have effect as if the subsection thereby substituted for subsection (5) of section two of the Adoption of Children Act, 1926, were in the following terms, that is to say:—

“(5) An adoption order shall not be made—

(a) in favour of any applicant who is not both domiciled in England and Wales or in Scotland and resident in England or in Wales, or

(b) in respect of any infant who is not both a British subject and resident in England or in Wales.”

(2) Paragraph (d) of section fifteen of the Adoption of Children (Regulation) Act, 1939, shall have effect as if the subsection thereby substituted for subsection (5) of section two of the Adoption of Children (Scotland) Act, 1930, were in the following terms, that is to say:—

“(5) An adoption order shall not be made—

(a) in favour of any applicant who is not both domiciled in Scotland or in England and Wales and resident in Scotland, or

(b) in respect of any infant who is not both a British subject and resident in Scotland.”

Postpone-
ment of
applications
under
12 & 13
Geo. 5.
c. 16, s. 140.

3. Section one hundred and forty of the Law of Property Act, 1922 (which authorises the making of applications for the determination of compensation for the extinguishment of manorial incidents at any time before the expiration of fifteen years from the first day of January nineteen hundred and twenty-six) shall have effect subject to the following provisions, that is to say,—

(a) no application under the said section made on or after the twenty-ninth day of November nineteen hundred and thirty-nine and before such date as His Majesty may by Order in Council appoint shall be of any effect;

(b) notwithstanding anything in the said section, such an application as aforesaid may be made

at any time during the period of twelve months beginning on the date appointed under the foregoing paragraph; and

- (c) in accordance with the foregoing provisions, paragraph (c) of the said section shall have effect as if for the words "before the expiration of the said period of fifteen years" there were substituted the words "before the twenty-ninth day of November nineteen hundred and thirty-nine or during the period of twelve months beginning on the date appointed by Order in Council under section three of the Postponement of Enactments (Miscellaneous Provisions) Act, 1939."

4. This Act may be cited as the Postponement of Short title. Enactments (Miscellaneous Provisions) Act, 1939.

CH. 2. *Postponement of Enactments* 3 & 4 GEO. 6.
 (Miscellaneous Provisions) Act, 1939.

Section 1.

SCHEDULE.

ACTS THE COMING INTO OPERATION OF WHICH IS
POSTPONED.

Session and Chapter.	Short Title.	Provisions excepted from postponement.
2 & 3 Geo. 6. c. 27.	The Adoption of Children (Regulation) Act, 1939.	Section eight. In section fifteen, paragraph (d), and, in paragraph (h), the definition of "the principal Act." In section sixteen, in subsection (2), the definition of "the principal Act." The Schedule.
2 & 3 Geo. 6. c. 34.	The Marriage (Scotland) Act, 1939.	—
2 & 3 Geo. 6. c. 44.	The House to House Collections Act, 1939.	—

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